

25VECV06512 25VECV06512

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-09-17

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Background

On November 13, 2025, Emeka Peter filed this action against Stone Dean, LLP and Suzanne R. Feffer arising out of allegations Defendant included Plaintiff's social security number in a public court filing. The First Amended Complaint, filed November 24, 2025, asserted causes of action for: (1) negligence; (2) negligent infliction of emotional distress; (3) invasion of privacy; (4) violation of Civil Code § 1798.81.5; (5) intentional infliction of emotional distress; (6) negligence per se; (7) breach of confidentiality; (8) intrusion upon seclusion; (9) violation of California right to privacy; (10) unfair business practices; (11) willful misconduct; (12) breach of fiduciary duty; (13) legal malpractice; (14) declaratory & injunctive relief.

On May 19, 2026, the court granted Defendants' motion to deem their requests for admission admitted. On June 16, 2026, Defendants filed a motion for summary judgment, set for hearing on September 29, 2026.

On June 29, 2026, Plaintiff filed a verified statement of disqualification of Judge Michael R. Amerian. The Court struck the statement on June 30, 2026.

On September 8, 2026, the court denied Plaintiff's request to continue the summary judgment hearing.

Motion

On August 31, 2026, Plaintiff filed the instant motion seeking to transfer this action to the Central District (Stanley Mosk Courthouse) or the North Central District (Pasadena Courthouse).

Defendants opposed the motion on the merits and therefore waived any objection to Plaintiff's late filing. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 697.)

Motion
to Transfer Between Districts

Standard

The
Local Rules of the Superior Court of Los Angeles County govern the assignment of cases between its districts and departments. (Code Civ. Proc. § 402.) SCLAC Local Rule 2.3(b)(2) authorizes the Supervising Judge of the Civil Division to transfer civil cases from one judicial district to another via a noticed motion on three enumerated grounds: (1) when the case was filed in an improper district; (2) for the convenience of witnesses; or (3) to promote the ends of justice. (SCLAC Local Rule 2.3(b)(2).)

Considering that the same language appears in both SCLAC Local Rule 2.3(b)(2) and Code of Civil Procedure § 397(c), the Court finds that a party acting under the authority of Los Angeles Superior Court Local Rule 2.3(b)(2) should bear the burden of proof if it seeks a district transfer out of a presumptively correct forum, just as in motions for change of proper venue pursuant to Code of Civil Procedure section 397(c). (See *Lieberman v. Superior Court* (1987) 194 Cal.App.3d 396, 401.) That burden of proof should, moreover, call for affidavits that contain more than generalities and conclusions. (See *Hamilton v Superior Court* (1974) 37 Cal. App.3d 418, 424.) Such affidavits or declarations, like those for change of venue under Code Civ. Proc. section 397(c), should show the name of each witness, the expected testimony of each witness, and facts showing why the attendance of said witnesses at trial would be inconvenient or why the ends of justice would be served by a transfer. (See *Stute v. Burinda* (1981) 123 Cal. App. 3d Supp. 11, 17.) Convenience to non-party witnesses, not the convenience of parties or of the parties' own employees, is generally the relevant consideration. (Ibid. See also *J. C. Millett Co. v. Latchford-Marble Glass Co.* (1959) 167 Cal.App.2d 218, 227 ("While generally the convenience of the employees of either party will not be considered [Citations], when such

employees are being called by an adverse party, the court may properly consider their convenience.”.)

Plaintiff

Failed to Demonstrate a Basis for a Transfer

Plaintiff's

action herein is based upon Defendants' alleged filing of Plaintiff's unredacted social security number in 23VECV05342.

In

the motion, Plaintiff contends the ends of justice warrant a transfer “[b]ecause the

records

administration, personnel, or operational safety of the Van Nuys Courthouse are the central subject of active litigation, maintaining this separate civil matter in the same physical location creates a profound structural conflict.” (Mot. at 3:9-13.) Plaintiff further argues “courthouse administration cannot seamlessly adjudicate an independent claim for an individual who is concurrently engaged in active data liability litigation against or involving that exact facility's clerk and record systems. Continuing proceedings in the Northwest District creates an unavoidable perception of systemic bias or friction.” (Mot. at 3:26-4:3.)

The

Court does not find a transfer warranted based upon the facts asserted. Plaintiff has not demonstrated an inability to have a fair trial or an appearance of impropriety that must be avoided via a district transfer.

The

case shall remain as assigned and the motion is DENIED.

Conclusion

Plaintiff's Motion

to Transfer Case Between Districts is DENIED.

Counsel for

Defendant to give notice.